

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
QIANA WILLIAMS, Individually, and as
Parent and Natural Guardian of NYAH
JOHNSON an Infant Over the Age of
14 YEARS, and WYNTER LEFORT & JUSTICE
LEFORT, Infants Under the Age of 14 YEARS

Plaintiff designates
New York County as
the place of trial.

Plaintiffs,

Basis of Venue:
Location of incident

-against-

CITY OF NEW YORK, JOHN DOE
aka Police Officer Torres
Shield No. 17568, Housing Bureau,
PSA 4, and JOHN DOE aka
Police Officer Ponce, Shield
No. 7910, Housing Bureau, PSA 4,

SUMMONS

Defendants.

-----X
TO THE ABOVE NAMED DEFENDANTS: CITY OF NEW YORK
Police Officer Torres 17568
Police Officer Ponce 7910

You are hereby summoned to answer the complaint in this
action, and to serve a copy of your answer, or, if the complaint
is not served with this summons, to serve a notice of appearance,
on the Plaintiff's Attorney within 20 days after service of this
summons, exclusive of the date of service (or within 30 days after
the service is complete if this summons is not personally
delivered to you within the State of New York); and in case of
your failure to appear, judgment will be taken against you by
default for the relief demanded in the complaint.

Dated: New York, N. Y.
June 21, 2017

Defendants' address:
100 Church Street
New York, N.Y.


ANTHONY BALSAMO
Attorney for Plaintiffs
111 John Street, Suite 800
New York, New York 10038
(212) 785-3434

Plaintiffs' address:
318 Beach 86th Street, Apt 13
Rockaway Beach, N.Y. 11693

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
QIANA WILLIAMS, Individually, and as
Parent and Natural Guardian of NYAH
JOHNSON an Infant Over the Age of
14 YEARS, and WYNTER LEFORT & JUSTICE
LEFORT, Infants Under the Age of 14 YEARS

Plaintiffs,

COMPLAINT

-against-

CITY OF NEW YORK, JOHN DOE (1)
a/k/a Police Officer Torres Shield
No. 17568, Housing Bureau,
PSA 4, and JOHN DOE (2) a/k/a
Police Officer Ponce, Shield No. 7910,
Housing Bureau, PSA 4,

Defendants.

-----X

The plaintiffs, by their attorney ANTHONY BALSAMO, Esq.,
complaining of the defendants, upon information and belief,
allege as follows:

Background

1. That at all times hereafter alleged, the plaintiffs
were and are residents of the City and State of New York, County
of New York

2. That at all times hereafter alleged, the defendant
City of New York, was and is a domestic municipal corporation,
duly organized and existing under and by virtue of the laws of
the State of New York.

3. That prior to the commencement of this action, the plaintiffs have complied with all applicable sections of the General Municipal Law, which are conditions precedent to the bringing an action against the defendants.

4. That on on April 14, 2016, at about 8:00 p.m., Police Officer "John Doe", a/k/a Police Officer Torres, Shield No. 17568, was a New York City Police Officer, employed by the City of New York, and was assigned to Housing Bureau PSA 4.

5. That on April 14, 2016, at about 8:00 p.m., Police Officer "John Doe" (2), a/k/a Police Officer Ponce, Shield No. 7910, was a New York City Police Officer, employed by the City of New York, and was assigned to Housing Bureau, PSA 4.

6. That on April 14, 2016, at about 8:00 p.m., said police officers were acting within the scope of their employment with the defendant City of New York.

7. That on April 14, 2016, at about 8:00 p.m., the plaintiffs were lawful occupants of premises 650 Water Street, Apt 5, County of New York, and were entitled to occupy said Apartment.

8. That on April 14, 2016, Police Officer Ponce and Police Officer Torres, while on duty, without a Court Order, and without plaintiffs' consent, did forcibly, wrongfully and wantonly evict plaintiffs from said apartment and did prevent plaintiffs from returning to the apartment.

9. That at the aforementioned time and place, Officers Torres and Ponce told plaintiffs that they were acting pursuant to a Court Order

10. That at the above mentioned time and place, Officers Torres and Ponce refused to show the Order of Eviction to plaintiffs.

11. That prior to April 14, 2016, the plaintiffs were never served with legal process demanding the possession of the apartment.

12. That subsequent to April 14, 2016, plaintiff Qiana Williams went to District 4, and requested to a copy of the Court Order of Eviction.

13. That plaintiff's request was refused and plaintiff was advised to obtain the Order from Court.

14. That plaintiff went to the local courts in the county of New York, and was not able to locate the Court Order of Eviction.

15. That at the time the defendants evicted the plaintiffs from the apartment, plaintiff had an Order of Protection, directing that Patricia Williams stay away from the aforementioned apartment.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
QIANA WILLIAMS individually, AGAINST THE DEFENDANTS

16. The plaintiffs repeat, reiterate and reallege each and every allegation previously set forth with the same force and affect as if each were repeated herein at length.

17. That as a result thereof, the defendants did cause emotional distress to the plaintiffs.

18. That as a result thereof, defendants and each of them have illegally evicted plaintiffs and have violated Section 853 of the Real Property Actions and Proceedings Law.

19. That as a result thereof, plaintiffs are entitled to damages and treble damages and damages for loss of personal property.

20. That the defendants have continued their unlawful acts and have caused plaintiffs further damages.

21. That as a result thereof, plaintiffs have been damaged in an amount that exceeds the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
QIANA WILLIAMS individually, AGAINST THE DEFENDANTS

22. The plaintiffs repeat, reiterate and reallege each and every allegation previously set forth with the same force and affect as if each were repeated herein at length.

23. That all times hereafter mentioned, the defendants were acting under the color of state law.

24. That the actions of the police officers, TORRES and PONCE, as alleged above, were illegal, as there was no probable

nor reasonable cause for evicting the plaintiffs.

25. That as a result of such actions defendants, and each of them, have violated the civil rights of the plaintiff.

26. That as a result thereof, plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction, together with legal fees.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
QIANA WILLIAMS as parent and natural guardian of
NYAH JOHNSON AGAINST THE DEFENDANTS

27. The plaintiffs repeat, reiterate and reallege each and every allegation previously set forth with the same force and affect as if each were repeated herein at length.

28. That as a result thereof, defendants and each of them have illegally evicted plaintiffs, and have violated Section 853 of the Real Property Actions and Proceedings Law.

29. That as a result thereof, plaintiffs are entitled to damages and treble damages and damages for loss of personal property.

30. That the defendants have continued their unlawful acts and have caused plaintiffs further damages.

31. That as a result thereof, plaintiffs have been damaged in the amount that exceeds the jurisdictional limits the the lower court that would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
QIANA WILLIAMS as parent and natural guardian of
NYAH JOHNSON AGAINST THE DEFENDANTS

32. The plaintiffs repeat, reiterate and reallege each and every allegation previously set forth with the same force and affect as if each were repeated herein at length.

33. That all times hereafter mentioned, the defendants were acting under the color of state law.

34. That the actions of the police officers, TORRES and PONCE, as alleged above, were illegal, as there was no probable nor reasonable cause for evicting the plaintiffs.

35. That as a result of such actions defendants, and each of them, have violated the civil rights of the plaintiff.

36. That as a result of thereof plaintiff has been damaged in an amount that exceeds the jurisdiction limits of all lower courts, that would otherwise have jurisdiction, together with legal fees.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
QIANA WILLIAMS as parent and natural guardian of
WYNTER LEFORT AGAINST THE DEFENDANTS

37. The plaintiffs repeat, reiterate and reallege each and every allegation previously set forth with the same force and affect as if each were repeated herein at length.

38. That as a result thereof, defendants and each of them have illegally evicted plaintiffs, and have violated Section 853 of the Real Property Actions and Proceedings Law.

39. That as a result thereof, plaintiffs are entitled to damages, treble damages and damages for loss of personal property.

40. That the defendants have continued their unlawful acts, and have caused plaintiffs further damages.

41. That as a result thereof, plaintiffs have been damaged in the amount that exceeds the jurisdictional limits all lower courts that would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF
QIANA WILLIAMS as parent and natural guardian of
WYNTER LEFORT AGAINST THE DEFENDANTS

42 The plaintiffs repeat, reiterate and reallege each and every allegation previously set forth with the same force and affect as if each were repeated herein at length.

43. That all times hereafter mentioned, the defendants were acting under the color of state law.

44. That the actions of the police officers, TORRES and PONCE, as alleged above, were illegal, as there was no probable nor reasonable cause for evicting the plaintiffs.

45. That as a result of such actions defendants, and each of them, have violated the civil rights of the plaintiff.

46. That as a result of thereof plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF
QIANA WILLIAMS as parent and natural guardian of
JUSTICE LEFORT AGAINST THE DEFENDANTS

47. The plaintiffs repeat, reiterate and reallege each and every allegation previously set forth with the same force and affect as if each were repeated herein at length.

48. That as a result thereof, defendants and each of them have illegally evicted plaintiffs and have violated Section 853 of the Real Property Actions and Proceedings Law.

49. That as a result thereof, plaintiffs are entitled to damages, treble damages and damages for loss of personal proerty.

50. That the defendants have continued their unlawful acts and have caused plaintiffs further damages.

51. That as a result thereof, plaintiffs have been damaged in the amount that exceeds the jurisdictional limits all lower court which would otherwise have jurisdiction.

AS AND FOR A EIGHTH CAUSE OF ACTION ON BEHALF OF
QIANA WILLIAMS as parent and natural guardian of
WYNTER LEFORT AGAINST THE DEFENDANTS

52. The plaintiffs repeat, reiterate and reallege each and every allegation previously set forth with the same force and affect as if each were repeated herein at length.

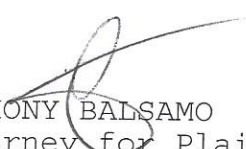
53. That all times hereafter mentioned, the defendants were acting under the color of state law.

54. That the actions of the police officers, TORRES and PONCE, as alleged above, were illegal, as there was no probable nor reasonable cause for evicting the plaintiffs.

55. That as a result of such actions defendants, and each of them, have violated the civil rights of the plaintiff.

56. That as a result of thereof, plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction, and legal fees.

WHEREFORE, the PLAINTIFFS demand judgment on the EACH CAUSE OF ACTION in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction, treble damages and legal fees, all together with costs and disbursements of the action.


ANTHONY BALSAMO
Attorney for Plaintiffs
111 John Street, Suite 800
New York, New York 10038
(212) 785-3434